

Court No. - 10

Case :- WRIT - C No. - 27724 of 2008

Petitioner :- Ram Lautan

Respondent :- U.P. Power Corporation Ltd. Thru' Chairman & Others

Counsel for Petitioner :- Rakesh Prasad, D.S. Yadav

Counsel for Respondent :- C.S.C., H.P. Dubey, Subhash Gosai

Hon'ble Arun Tandon, J.

Hon'ble Harsh Kumar, J.

From the perusal of the record of the present writ petition, it is apparent that the petitioner has been served with a bill dated 5.9.2013, for an amount of Rs. 5,71,877/-, and another bill dated 4.4.2014 for a sum of Rs. 6,14,779/- and odd. Prior to the submission of the bill, a recovery certificate was issued on 20.12.2007 for a sum of Rs.2 lac and odd.

According to the petitioner, he had submitted an application for supply of electrical energy and deposited the fee but connection has not been affected. It is, therefore, stated that he had not consumed the electricity, accordingly recovery cannot be affected.

From the record we find that the bill which has now been enclosed, contain connection number, purely factual issues with regard to the supply of electrical energy to the petitioner are evolved.

In our view, writ petition is not the proper remedy, petitioner may challenge the electricity bills by resorting to clause 6.5 of the Electricity Supply Code, 2005, at the first instance.

The writ petition is dismissed with the liberty to challenge the bills. Interim order, if any, stands discharged.

Order Date :- 15.2.2016

B.Pratap/NA